

STATE OF NEW YORK

199--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. SOLAGES, CHANDLER-WATERMAN, BURDICK, SEAWRIGHT, ROZIC, RAMOS, MEEKS, PAULIN, LASHER, GRIFFIN, SIMON, STECK, EPSTEIN, LAVINE, ZACCARO, O'PHARROW, SCHIAVONI, GONZALEZ-ROJAS, COLTON, SHIMSKY, DINOWITZ, ROSENTHAL, TORRES, KASSAY, TAYLOR, HEVESI, R. CARROLL, SIMONE, CRUZ, STERN, ALVAREZ, LUNSFORD, TAPIA, SHRESTHA, STIRPE, CUNNINGHAM, GALLAGHER, WEPRIN, P. CARROLL, REYES, FORREST -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to the regulation of pistol converters and convertible pistols

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 265.00 of the penal law is amended and a new subdivision 37 is added to read as follows:

1. "Machine-gun" means a weapon of any description, irrespective of size, by whatever name known, loaded or unloaded, from which a number of shots or bullets may be rapidly or automatically discharged from a magazine with one continuous pull of the trigger and includes a sub-machine gun, and also includes any convertible pistol that is equipped with a pistol converter.

37. "Convertible pistol" means any semi-automatic pistol with a cruciform trigger bar that can be readily converted by hand or with common household tools into a machine-gun solely by the installation or attachment of a pistol converter. As used in this subdivision, "common household tools" means screwdrivers, pipe wrenches, pliers, hacksaws, crowbars, electric drills, hammers, chisels, and crescent wrenches. "Convertible pistol" does not include hammer-fired semi-automatic pistol or any striker-fired semi-automatic pistol lacking a cruciform trigger bar, which instead has a trigger bar that is shielded from interference

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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by a pistol converter. A polymer notch or other piece of polymer molded into the rear of a pistol frame does not prevent ready conversion into a machine-gun and will not prevent such pistol from qualifying as a "convertible pistol" under this subdivision.

§ 2. Subdivisions 1 and 2 of section 265.10 of the penal law, as amended by chapter 481 of the laws of 2024, are amended and a new subdivision 10 is added to read as follows:

1. Any person who manufactures or causes to be manufactured any machine-gun, pistol converter, assault weapon, large capacity ammunition feeding device or disguised gun is guilty of a class D felony. Any person who manufactures or causes to be manufactured any rapid-fire modification device is guilty of a class E felony. Any person who manufactures or causes to be manufactured any switchblade knife, pilum ballistic knife, metal knuckle knife, undetectable knife, billy, blackjack, bludgeon, plastic knuckles, metal knuckles, throwing star, chuka stick, sandbag, sandclub or slungshot is guilty of a class A misdemeanor.

2. Any person who transports or ships any machine-gun, pistol converter, firearm silencer, assault weapon or large capacity ammunition feeding device or disguised gun, or who transports or ships as merchandise five or more firearms, is guilty of a class D felony. Any person who transports or ships any rapid-fire modification device is guilty of a class E felony. Any person who transports or ships as merchandise any firearm, other than an assault weapon, switchblade knife, pilum ballistic knife, undetectable knife, billy, blackjack, bludgeon, plastic knuckles, metal knuckles, throwing star, chuka stick, sandbag or slungshot is guilty of a class A misdemeanor.

10. Any person, dealer, firm, partnership, or corporation who disposes of or who transports or ships as merchandise a convertible pistol is guilty of a class D felony.

§ 3. Section 265.20 of the penal law is amended by adding a new subdivision f to read as follows:

f. Subdivision ten of section 265.10 of this article shall not apply to the disposition of a convertible pistol to, nor to the transport or shipping as merchandise of a convertible pistol for disposition to the following:

1. Persons in the military service of the state of New York when duly authorized by regulations issued by the adjutant general to possess the same.

2. Police officers as defined in subdivision thirty-four of section 1.20 of the criminal procedure law.

3. Peace officers as defined by section 2.10 of the criminal procedure law.

4. Persons in the military or other service of the United States, in pursuit of official duty or when duly authorized by federal law, regulation or order to possess the same.

5. Persons employed in fulfilling defense contracts with the government of the United States or agencies thereof when possession of the same is necessary for manufacture, transport, installation and testing under the requirements of such contract.

6. Persons engaging in the business of gunsmith or dealer in firearms to whom a valid license therefor has been issued pursuant to section 400.00 of this chapter.

§ 4. Subdivision 36 of section 265.00 of the penal law, as added by chapter 429 of the laws of 2024, is amended to read as follows:

1 36. "Pistol converter" means any device or instrument that when
2 installed in or attached to the rear of the slide of a semi-automatic
3 pistol, replaces the backplate, and interferes with the trigger mech-
4 anism and thereby enables the pistol to discharge a number of shots or
5 bullets rapidly or automatically with one continuous pull of the trig-
6 ger.

7 § 5. The superintendent of the division of state police is authorized
8 to promulgate rules, regulations, and policies necessary to effectuate
9 the provisions of this act.

10 § 6. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law. Effective immediately, the addition, amend-
12 ment and/or repeal of any rule or regulation necessary for the implemen-
13 tation of this act on its effective date are authorized to be made and
14 completed on or before such effective date.